

Vaibhav Vinod Goyal And 8 Others vs State Of Mah. Thr. Pso Ps Khadan Akola And ... on 28 March, 2022

Author: Amit B. Borkar

Bench: V. M. Deshpande, Amit B. Borkar

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
: NAGPUR BENCH : NAGPUR.

CRIMINAL APPLICATION [APL] NO. 415 OF 2022

APPLICANTS : 1] Vaibhav Vinod Goyal,
Aged about 31 years, Occu. Medical
Practitioner, R/o Flat No. A-201,
Emerald Court, Sanjana Park, Near Agrawal
Public School, Indore, Tq. & Dist. Indore (M.P.)

2] Usha Vinod Goyal,
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

3] Hina Achal Agrawal,
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

4] Anchal Agrawal
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

5] Shikha Manish Singhal,
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

6] Manish Singhal,
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

7] Rekha Govind Singhal,
R/o Flat No. A-201, Emerald Court, Sanjana

Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

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8] Govind Singhal,
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

9] Anil Tambi
R/o Flat No. A-201, Emerald Court, Sanjana
Park, Near Agrawal Public School, Indore,
Tq. & Dist. Indore (M.P.)

VERSUS

NON-APPLICANTS

: 1] State of Maharashtra,
through Police Station Officer,
Police Station, Khadan, Akola.

2] Pooja Vaibhav Goyal,
Aged about 27 years, Occu. Govt. Service,
At present R/o C/o Dr. Umesh Agrawal,
Beside Honda Showroom, Alsi Plots,
Akola, Tq. And Dist. Akola.

Shri S. V. Bhutada, Advocate for the applicants
Shri T. A. Mirza, A. P .P. for the non-applicant no.1/State
Shri P. P. Kotwal, Advocate for non-applicant no.2.

CORAM : V. M. DESHPANDE and
AMIT B. BORKAR, JJ.
DATE : MARCH 28, 2022.

ORAL JUDGMENT (Per : Amit B. Borkar, J.)

1. Rule. Rule is made returnable forthwith. Heard finally by consent of the parties.

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2. By this application under Section 482 of the Code of Criminal Procedure, the applicants are challenging registration of the first information report vide Crime No. 1082/2021 filed against them by non-applicant no.2 with non-applicant no.1 - Police Station, Khadan, Akola for the offence punishable under Sections 498-A, 504, 506 read with Section 34 of the Indian Penal Code.

3. The first information report in question came to be registered against the applicants with accusation that the applicants have physically and mentally harassed the non-applicant no.2 on the

ground of non-payment of dowry. The applicants have, therefore, challenged registration of the first information report by filing the present application.

4. We have heard Shri S. V. Bhutada, learned counsel for the applicants, Shri T. A. Mirza, learned Additional Public Prosecutor non-applicant no.1 and Shri P. P. Kotwal, learned counsel for non-applicant no.2.

5. During pendency of the proceedings, the applicant no.1 and non-applicant no.2 have amicably resolved their dispute. They 4 APL415.22.odt have filed a joint petition under Section 13-B of the Hindu Marriage Act for mutual divorce before the Family Court at Akola. A copy of the said joint petition is placed on record by the applicants at Annexure-A2. One of the annexures is an affidavit of non-applicant no.2.

6. Today, non-applicant no.2 is personally present in the Court. She has stated that she and applicant no.1 have decided to amicably resolve their dispute and accordingly they have filed a petition under Section 13-B of the Hindu Marriage Act before the Family Court at Akola. She has stated that she has no objection if the first information report, which is the subject matter of the present application, is quashed and set aside.

7. We have carefully considered the allegations in the first information report and we are satisfied that even if the allegations in the first information report along with the material on record are taken on its face value, the same are not sufficient to constitute the essential ingredients of the offences alleged against the applicants,.

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8. The Hon'ble Apex Court in Narinder Singh .vs. State of Punjab, reported in 2014 AIR SCW 2065 has observed that the Court cannot decline to quash criminal case in which the first information report incorporates a particular provision, which is a serious offence or an offence against the society. The Court shall make all endeavor whether the first information report indeed discloses the ingredient of such offence and Court can accept the settlement and quash the first information report, if the Court is of the opinion that such offence is unnecessarily incorporated in the first information report.

9. In view of the judgment of the Hon'ble Apex Court in Narinder Singh's case (supra) and in view of amicable resolution of the dispute between the applicants and non-applicant no.2, there is no impediment for quashing of the first information report against the applicants. We, therefore, pass the following order :

ORDER

1. The Criminal Application is allowed.

2. Rule is made absolute in terms of prayer clause (A) of the application, which reads as under :

"Quash and set aside First Information Report No. 1082 of 2021 registered by Police Station, Khadan, 6 APL415.22.odt Akola under Section 498-A, 504, 506 and 34 of the Indian Penal Code, 1860 against the applicants."

3. The application is disposed of accordingly.

(AMIT B. BORKAR, J.)

(V.M.DESHPANDE, J.)

Diwale